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To: [ostp-ai-rfi](#)
Subject: [External] Comment on AI action plan
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I object to the proposal to allow non-contractual use of copyright materials in AI data sets.

It is not "America's" AI dominance we're taking about here, it is the dominance of a few monopolistic multinational corporations. Permitting them to strip mine our cultural resources will not stop them from offshoring their jobs as they please. Ordinary Americans have nothing to gain from this. Least of all those who make writing or art or other digestible art forms.

Furthermore, commercial AI models have only a modest edge over current open source AI models, which are globally available. This is not an industry where we can have and maintain any lasting advantage.

Meanwhile, what we're being expected to sacrifice is significant. American copyright loses monetary value if it can no longer be granted exclusively in a contract.

If any work produced by an American can be instantly and freely ingested in an AI model, reproduced, modified without consent and resold, this will discourage Americans from creating, and it will discourage writers and artists from living in the USA. We will be abdicating our cultural high ground.

There is nothing stopping OpenAI, Google, and others from purchasing the rights to the works they want to make use of, in their derivative work. They are just asking for a handout--a handout of monumental proportions--that would be very damaging to the public interest.

There are some AI developers ethically and consensually sourcing their data. We are already giving bad actors too much free rein.

I work as a software developer, at a company that, like many, includes AI capabilities in our products. While I understand the usefulness of AI, I want to see ethically sourced AI become the norm. I don't want my work--helping office workers draft boring emails--to come at the expense of my friends who are artists and writers.

Thanks

Nick Davies

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